

		23-40.) The arbitration agreement covers the claims, but only if Defendant can meet its burden Plaintiff was not actually the victim of identity theft and was in fact, the person who applied for and used the credit card. Here, Defendant has not shown by a preponderance of the evidence that Plaintiff assented to the terms of the Cardholder Agreement, including the arbitration provision. Defendant's timeline and description of events, including phone calls from Plaintiff's phone number evidencing consent, is consistent with identity theft, including a person hacking into someone's computer or phone and falsely pretending to be that person. The actions taken by Plaintiff are also consistent with a person whose identity has been stolen and trying to correct the issue. (Hopkins-Donihe Decl. ¶¶ 8-16, 19, Ex. F; Mott Decl. ¶¶ 2-19, Exs. A, B.) Defendant failed to meet its burden showing a valid and enforceable arbitration agreement between the parties. The motion is therefore DENIED. <i>Counsel for Plaintiff shall provide notice of this ruling.</i>
5.	Williams v. Southern California Edison 23-1300300	The motion to bifurcate and try issues of causation in advance of issues of damages filed by defendant Southern California Edison Company (Defendant) is DENIED. <i>Code of Civil Procedure section 598</i> provides that the court may order certain issues tried before others "when the convenience of witnesses, the ends of justice, or the economy and efficiency of handling the litigation would be promoted thereby[.]" (<i>Code Civ. Proc.</i>, § 598.) Similarly, <i>Code of Civil Procedure section 1048(b)</i> provides: "The court, in furtherance of convenience or to avoid prejudice, or when separate trials will be conducive to expedition and economy, may order a separate trial of any cause of action, including a cause of action asserted in a cross-complaint, or of any separate issue or of any number of causes of action or issues, preserving the right of trial by jury required by the Constitution or a statute of this state or of the United States." (<i>Code Civ. Proc.</i>, § 1048(b).) The Court has considered the arguments and evidence submitted by both parties and determines, at this time, bifurcation as requested by Defendant is not warranted. Accordingly, the motion is DENIED. <i>Counsel for Plaintiffs shall give notice of this ruling.</i>
6.	Auto Finance Solutions, LLC v. Prestige Kia Riverside 25-1500766	(Off calendar)
7.	Raygoza v. Kia America, Inc. 25-1466366	Before the Court is a motion to strike filed by defendant Kia America, Inc. (Defendant) directed to the First Amended Complaint (FAC) filed by plaintiff Esperanza L. Batres Raygoza (Plaintiff). For the reasons set forth below, the motion to strike is DENIED.